

CHAPTER 30.

An Act to make temporary provision for enabling statutory effect to be given to rates of wages agreed between representative organisations in the cotton manufacturing industry; and for purposes connected with the matter aforesaid.

[28th June 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) If an organisation of employers in the cotton manufacturing industry (hereinafter referred to as “ the industry ”) and an organisation of persons employed in the industry make to the Minister of Labour (hereinafter referred to as “ the Minister ”) in the prescribed manner a joint application for the making of an order with respect to any agreement made between the organisations as to the rates of wages to be paid to persons employed in the industry of any class or description specified in the agreement, the Minister shall, unless he is satisfied that the organisations do not respectively represent the employers controlling the majority of the looms in the industry and the majority of the persons employed in the industry of the grade or grades which will, if such an order is made, be affected by the rates of wages provided for by the agreement, appoint a board to consider the application and report to him thereon.

Applications
for orders
and pro-
ceedings
thereon.

(2) Any organisations making an application under this section shall, in the prescribed manner, give notice of the application, of the places where copies of the agreement with respect to which the application is made may be obtained free of charge, and of the time within which written objections to the application or to the making of an order thereon must be sent to the Minister.

(3) The board appointed to consider any application made under this section shall inquire whether the organisations which are parties to the agreement in respect of which the application was made were at the date of the

making of the application representative respectively of the employers controlling the majority of the looms in the industry and the majority of the persons employed in the industry of the grade or grades which will, if an order is made, be affected by the rates of wages provided for by the agreement, and, if the board is of opinion that either organisation was not so representative, the board shall forthwith report that opinion to the Minister and no further proceedings shall be taken with respect to the application.

(4) If the board is satisfied that the said organisations were so representative as aforesaid, the board shall inquire whether it is expedient that an order be made under this Act, and shall, as soon as possible, make to the Minister its report which, however, shall not contain a recommendation that such an order be made unless the board is unanimous in making that recommendation.

Making of
orders.

2.—(1) If the report of the board appointed to consider any application made under the last foregoing section with respect to any agreement contains a unanimous recommendation that an order be made bringing into force, as respects all persons employed in the industry of the class or description to which the agreement relates, the rates of wages provided for by the agreement, the Minister may make such an order.

(2) An order made under this section shall set out the rates of wages thereby brought into force, and any provisions of the agreement as to the conditions for earning or the method of calculating such wages, and the order may contain such further provisions, if any, as the Minister considers necessary for making plain who are the employers and the employed persons affected by the rates of wages brought into force by the order, but, save as aforesaid, no such order shall modify the terms of the agreement.

Effect of
orders.

3. Where an order made under the last foregoing section is in operation—

(a) it shall be a term of the contract between every person employed in the industry as respects whom a rate of wages is provided for by the order and his employer that the employer shall

pay to the person employed wages at a rate not less than the rate applicable in his case under the order;

- (b) if any employer pays to a person employed in the industry, as respects whom a rate of wages is provided for by the order, wages at a rate less than the rate applicable in his case under the order, the employer shall (without prejudice to any proceedings under the last foregoing paragraph) be liable on summary conviction to a fine not exceeding ten pounds;
- (c) it shall be the duty of every employer who employs persons in the industry, as respects whom rates of wages are provided for by the order, to keep a copy of the order conspicuously exhibited in the premises where such persons are employed and to keep such records as are necessary to show that the wages paid to those persons are at rates not less than those applicable to them under the order; and if any such employer fails to comply with any requirement of this paragraph, he shall be liable on summary conviction to a fine not exceeding five pounds.

4.—(1) Where an order made under section two of this Act is in operation, if either of the organisations, by which the joint application for the making of the order was made, make to the Minister a request in writing that the order be revoked either wholly or in respect of any provision specified in the request, the Minister shall forthwith cause to be published in the London Gazette notice of the request and of the fact that the order will be revoked either wholly or in respect of the provision specified in the request at the expiration of a period of three months from the date of the publication, and shall make an order revoking the former order either wholly or to the extent so specified as aforesaid as from the expiration of that period:

Revocation
of orders.

Provided that, if before the expiration of that period the request is, by notice in writing addressed to the Minister, withdrawn by the organisation by which it was made, the Minister shall not make such an order as aforesaid but shall forthwith cause to be published in the London Gazette notice of the withdrawal of the request

and of the fact that no further proceedings will be taken thereon.

(2) Where an order made under section two of this Act is in operation, the Minister may, after giving in such manner as he thinks best calculated to inform persons likely to be affected notice of his intention to do so and of the time within which written objections to the revocation of the order must be sent to the Minister, appoint a board to consider whether it is expedient that the order be revoked, and if the report of the board contains a unanimous recommendation that the order be revoked, the Minister may make an order revoking the former order :

Provided that a board shall not be appointed under this subsection to consider the revocation of any order unless the order has been in operation for at least twelve months since the revocation thereof was considered by a previous board so appointed, or, where no such board has been appointed, since the order came into operation.

(3) If the Minister considers that by reason of imminent national danger or great emergency it is necessary so to do, he may, without any such proceedings as aforesaid, by order revoke any order made under section two of this Act which is for the time being in operation.

Constitu-
tion of, and
proceedings
with respect
to, boards.

5.—(1) A board appointed under this Act shall consist of a chairman and two other members and no person who is, in the opinion of the Minister, connected with the industry shall be a member of any such board.

(2) When any such board has been appointed, the Minister shall, in such manner as he thinks best calculated to inform persons likely to be affected, give notice of the appointment of the board, of the names of the members, and of the date on which and place at which the board will meet.

(3) Where a board has been appointed to consider a joint application for the making of an order under section two of this Act, or to consider the revocation of an order made on such an application, each organisation which was a party to the application shall be entitled to appoint six of its members to sit with the board as assessors.

(4) In making inquiry into any matter referred to it, the board shall consider such written objections, if

any, with regard to that matter, as have been duly sent to the Minister, and, without prejudice to the power of the board to regulate its procedure, may, if it thinks fit, hear oral evidence given by or on behalf of any person by whom such an objection has been so sent.

(5) A copy of the report of any board appointed to consider a joint application for the making of an order under section two of this Act, or to consider the revocation of an order made on such an application, shall be transmitted by the Minister to the organisations by which the application was made.

6.—(1) There shall be paid out of moneys provided by Parliament such fees to members of any board appointed under this Act and such expenses in connection with the proceedings of any such board as may be determined by the Minister with the consent of the Treasury. Administra-
tive provi-
sions.

(2) The Minister may with the consent of the Treasury assign to any such board such officers of the Ministry of Labour as he considers necessary.

(3) When any order is made under this Act, notice of the making thereof and of the places where copies of the order may be obtained shall be published in the London Gazette.

(4) Regulations may be made by the Minister for giving effect to the provisions of this Act.

7.—(1) In this Act, the expression “cotton manufacturing industry” means the manufacture in the areas specified in the Schedule to this Act of woven fabrics from the following yarns (either with or without an admixture of not more than five per cent. of other fibres) namely, cotton yarn, rayon yarn or mixed cotton and rayon yarn, including the preparation of warp and weft for the loom, the examination and bundling of such fabrics as aforesaid, and operations incidental to the said manufacture, preparation, examination or bundling; and the expression “prescribed” means prescribed by regulations made under this Act. Interpreta-
tion.

(2) In determining for the purposes of this Act whether an organisation was at any date representative of the employers controlling the majority of the looms in the industry, no account shall be taken of the looms in

any factory in which during the period of twelve months immediately preceding that date no looms had been used; and in determining for the said purposes whether an organisation was at any date representative of the majority of the persons employed in the industry of any grade or grades, all weavers employed in the industry shall be deemed to form a single grade, and other grades shall be determined in like manner by reference to the several occupations of the persons employed.

52 & 53 Vict.
c. 63.

(3) The provisions of the Interpretation Act, 1889, shall apply to the revocation of any order made under this Act in like manner as those provisions apply to the repeal of enactments passed after the commencement of that Act.

Short title
and dura-
tion of
ss. 1 and 2.

8.—(1) This Act may be cited as the Cotton Manufacturing Industry (Temporary Provisions) Act, 1934.

(2) Sections one and two of this Act shall continue in force until the thirty-first day of December nineteen hundred and thirty seven and no longer :

Provided that any order made under the said section two shall, notwithstanding the expiry of that section, continue in operation until revoked in accordance with the provisions of this Act.

SCHEDULE.

Section 7. AREAS IN WHICH COTTON MANUFACTURING INDUSTRY IS CARRIED ON.

The Administrative County of Lancaster.
The County Borough of Barrow-in-Furness.
The County Borough of Blackburn.
The County Borough of Blackpool.
The County Borough of Bolton.
The County Borough of Bootle.
The County Borough of Burnley.
The County Borough of Bury.
The County Borough of Liverpool.
The County Borough of Manchester.

The County Borough of Oldham.

The County Borough of Preston.

The County Borough of Rochdale.

The County Borough of St. Helen's.

The County Borough of Salford.

The County Borough of Southport.

The County Borough of Stockport.

The County Borough of Warrington.

The County Borough of Wigan.

In the West Riding of the County of York—

The Borough of Todmorden.

The Urban District of Barnoldswick.

The Urban District of Earby.

The Urban District of Hebden Bridge.

The Urban District of Luddendenfoot.

The Urban District of Mytholmroyd.

The Urban District of Saddleworth.

The Urban District of Silsden.

The Urban District of Skipton.

The Rural District of Bowland.

The Rural District of Settle.

The Rural District of Skipton.

The Rural District of Todmorden.

In the County of Derby—

The Borough of Glossop.

The Urban District of New Mills.

The Parishes of Charlesworth, Chisworth, and Ludworth
in the Rural District of Chapel-en-le-Frith.

In the County of Chester—

The Borough of Dukinfield.

The Borough of Hyde.

The Borough of Stalybridge.

The Urban District of Compstall.

The Urban District of Hollingworth.

The Urban District of Marple.

The Urban District of Mottram-in-Longendale.

The Urban District of Yeardsley-cum-Whaley.

The Rural District of Tintwistle.

The Parish of Styal in the Rural District of Bucklow.
